

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID MIMS,

Plaintiff,

- against -

THE CITY OF NEW YORK, JONATHAN VIRTUOSO
and ANTHONY CALTABIANO,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
633 Lenox Avenue (#5-C)
New York, N.Y. 10037

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 10, 2014

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
DAVID MIMS
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
Jonathan Virtuoso, c/o: 23rd Pct., 162 East 102nd St, New York, N.Y. 10029
Anthony Caltabiano, c/o: 23rd Pct., 162 East 102nd St., New York, N.Y. 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID MIMS,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JONATHAN VIRTUOSO
and ANTHONY CALTABIANO,

Defendants.

-----X
Plaintiff, complaining of the defendants, by his
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That, at all times hereinafter mentioned, and on
October 29, 2012, the plaintiff, **DAVID MIMS**, was and still is a
resident of the County of New York, City and State of New
York.

2. That, at all times hereinafter mentioned, and on
October 29, 2012 the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of the
laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
October 29, 2012 the defendant, **JONATHAN VIRTUOSO**, (hereinafter

referred to as "**VIRTUOSO**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on October 29, 2012 the defendant, **ANTHONY CALTABIANO**, (hereinafter referred to as "**CALTABIANO**"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **DAVID MIMS**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on January 9, 2013 and December 16, 2013, respectively, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DAVID MIMS**, testified at an oral examination pursuant to the General Municipal Law on January 3, 2014; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That on October 29, 2012 the plaintiff, **DAVID MIMS** was on the corner of East 102nd Street and 1st Avenue, in the County of New York, City and State of New York.

7. The Plaintiff, **DAVID MIMS**, was in the process of filming the surrounding location.

8. The Plaintiff, **DAVID MIMS**, was approached by the defendant, **VIRTUOSO**.

9. The plaintiff, **DAVID MIMS**, was thereafter grabbed and thrown to the ground by defendant, **VIRTUOSO**, and/or other agents, servants, and/or employees of the defendant, **THE CITY**.

10. The plaintiff, **DAVID MIMS**, was also struck, assaulted and beaten by the defendant, **CALTABIANO**.

11. The Plaintiff, **DAVID MIMS** was cursed at, and had fowl language used against him by the defendant, and/or defendants.

12. The plaintiff, **DAVID MIMS**, was placed in handcuffs.

13. The plaintiff, **DAVID MIMS**, injured various portions of his body, including, but not limited to his neck, back, shoulder, head and face.

14. The plaintiff, **DAVID MIMS**, was lying on the ground while he was beaten by the defendant and/or defendants.

15. The plaintiff, **DAVID MIMS**, had his property destroyed by the defendant and/or defendants.

16. The plaintiff, **DAVID MIMS**, was taken by the defendant and/or defendants to the police precinct.

17. The plaintiff, **DAVID MIMS**, was taken by the defendant and/or defendants to Central Booking.

18. The plaintiff, **DAVID MIMS**, was thereafter seen by the judge.

19. The plaintiff, **DAVID MIMS**, was caused to appear in Criminal Court on several occasions.

20. All charges against the plaintiff, **DAVID MIMS**, were ultimately dismissed on December 10, 2013.

21. That, on October 29, 2012 the plaintiff, **DAVID MIMS**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **DAVID MIMS**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place in front of premises known as East 102nd Street and First Avenue, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **DAVID MIMS** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on October 29, 2012 and for sometime prior thereto, defendant, **VIRTUOSO**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on October 29, 2012, and for sometime prior thereto, defendant,

CALTABIANO, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, the aforementioned assault and battery of the plaintiff, **DAVID MIMS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

27. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

30. That, the plaintiff, **DAVID MIMS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 29 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **VIRTUOSO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the

defendant, **CALTABIANO**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **VIRTUOSO**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **CALTABIANO**, who was employed by the defendant, **THE CITY**.

36. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

37. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

38. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

39. That the plaintiff, **DAVID MIMS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 38 with the same force and effect as if hereinafter more fully set forth at length herein.

40. That, on October 29, 2012, the plaintiff, **DAVID MIMS**, was caused to be falsely arrested and falsely imprisoned without probable cause.

41. That, the plaintiff, **DAVID MIMS** , was arrested without an arrest warrant.

42. That, the false arrest/false imprisonment took place in front of premises known as East 102nd Street and First Avenue, in the County of New York, City and State of New York, and other locations and wherein the plaintiff, **DAVID MIMS** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

43. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID MIMS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

44. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID MIMS**, was carried out by defendant, **VIRTUOSO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID MIMS**, was carried out by defendant, **CALTABIANCO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

46. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

47. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving

intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

48. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

49. The plaintiff, **DAVID MIMS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 48 with the same force and effect as if hereinafter more fully set forth at length herein.

50. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID MIMS**, was caused due to a malicious prosecution of the plaintiff, **DAVID MIMS**, without cause, without reasonable cause, and without color of the law.

51. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a proper and thorough investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **DAVID MIMS**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

52. That, upon information and belief, all criminal charges against the plaintiff, **DAVID MIMS**, were ultimately dismissed on December 10, 2013, in the County of New York, City and State of New York, before Judge A. Clott under docket Number 2012NY084368.

53. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

54. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

55. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

56. The plaintiff, **DAVID MIMS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 55, with the same force and effect as if hereinafter more fully set forth at length herein.

57. That the plaintiff, **DAVID MIMS** did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

58. That at all times hereinafter mentioned, the defendant, **VIRTUOSO**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

59. That at all times hereinafter mentioned, the defendant, **CALTABIANO**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

60. Defendants, **JONATHAN VIRTUOSO**, and **ANTHONY CALTABIANO**, are being sued in their personal and official capacities

for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

61. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DAVID MIMS** of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **DAVID MIMS** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DAVID MIMS**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DAVID MIMS**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

62. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

63. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

64. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

65. That the deprivation of plaintiff, **DAVID MIMS** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

66. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY.**

67. That the detaining of plaintiff, **DAVID MIMS** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY.**

68. That the deprivation of plaintiff, **DAVID MIMS** Constitutional Rights was the result of the defendant, **VIRTUOSO'S** arrest of the plaintiff **DAVID MIMS** without probable cause.

69. That the deprivation of plaintiff, **DAVID MIMS'S** Constitutional Rights was the result of the defendant, **CALTABIANO'S** arrest of the plaintiff **DAVID MIMS** without probable cause.

70. That the deprivation of plaintiff, **DAVID MIMS'S** Constitutional Rights was a result of the defendant, **THE CITY'S** custom and policy in failing to discipline officers for the use of excessive force.

71. That the deprivation of plaintiff, **DAVID MIMS'S** Constitutional Rights was the result of **VIRTUOSO'S** use of excessive force.

72. That the deprivation of plaintiff, **DAVID MIMS'S** Constitutional Rights was the result of **CALTABIANO'S** use of excessive force.

73. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DAVID MIMS**.

74. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious as well as prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various

employees and/or police officers, the plaintiff, **DAVID MIMS** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

75. That, by reason of the foregoing, the plaintiff **DAVID MIMS** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

76. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

77. That, by reason of the foregoing, the plaintiff, **DAVID MIMS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DAVID MIMS**, demands judgment against the defendants, on the First, Second, Third, Fourth and Fifth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs,

disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
January 10, 2014

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
DAVID MIMS
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

DP

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) .SS:
COUNTY OF NEW YORK)

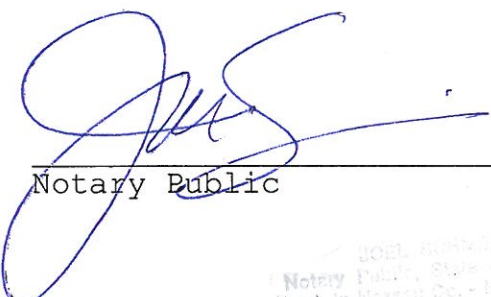
DAVID MIMS, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



DAVID MIMS

Sworn to before me this
10 day of January, 2014



Notary Public

JOEL BROWN
Notary Public, State of New York
Qual. in Nassau Co. - No. 64200078
Commission Expires January 31, 2017

2017

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DAVID MIMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, JONATHAN VIRTUOSO and ANTHONY CALTABIANO,

Defendants.

SUMMONS AND COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: JAN. 10, 2014

Signature

Print Signer's Name... Joel Schmelkin

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

20

, at

M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK, N.Y. 10007